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24-CLJ-06336

WELLS FARGO BANK, N.A. VS. MARC G. CABANGAL

LINE 4

WELLS FARGO BANK, N.A.
MARC G. CABANGAL

HARLAN M. REESE
PRO SE

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is GRANTED pursuant to Code of Civil Procedure Section 438 (c)(1)(A).

To the extent that it is even necessary for the Court to judicially notice the file in the instant case, Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code Section 452 (d).

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply—motion for judgment on the pleadings is equivalent to a demurrer." Motion for Judgment on the Pleadings, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-D (quotations and citations omitted). "A motion by plaintiff (or cross-complainant) can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant (or cross-defendant) and the answer does not state facts sufficient to constitute a defense to the complaint." *Id.* (citing Code of Civil Procedure Section 438(c)(1)(A)).

A general demurrer under Section 430.10(e) of the Code of Civil Procedure for failure to state a cause of action challenges defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* (1985) 39 C3d 311, 318.

"It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted)

"For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law)." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

Here, Plaintiff's Judicial Council Form Complaint alleges breach of contract with damages in the amount of \$8,009.82. Defendant filed an Answer on November 14, 2024, but the filing was voided due to nonpayment of fees.

It is of note, in passing, that Plaintiff's Motion to Deem Facts Admitted was granted, and the genuineness of any documents and truth of any facts in Plaintiff's RFA's, Set One were deemed admitted. RJN, Exh.

B. Those fact include, inter alia: that Defendant Marc G Cabangal had an account ending in No.'s 4272 with Plaintiff; that monthly account statements were sent to him; that he never notified Plaintiff of a dispute; that as of October 4, 2024 there was a balance owing of at least \$8,009.82 on the account; that he has not paid any amount on the account since October 4, 2024; that Defendant owes at least \$8,009.82 to Plaintiff; and that the parties' agreement includes a provision providing for attorney's fees. RJN, Exh. A.

Plaintiff argues that the deemed admissions are sufficient to grant this motion. That is mostly wrong. *Columbia Cas. Co. v. Nw. Nat. Ins. Co.* (1991) 231 Cal. App. 3d 457, 468 ("In contrast, in order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted."). The matters deemed admitted here relate to matters that can, at least in theory, be controverted. The main case cited by Plaintiff, *Barsegian v. Kessler & Kessler* (2013) 215 Cal. App. 4th 446, 452 is not a judgment on the pleadings case and does not support granting this motion.

However, as noted above, Defendant's rejected answer does not provide any defense to the Complaint. Defendant did not deny any of the allegations in the Complaint. Defendant simply noted that he is "[c]urrently unemployed and do not have a consistent source of income" and that he "would like to settle outside of court for a reduced amount if possible." Therefore, Plaintiff is clearly entitled to judgment under Section 438(c)(1)(A)), although it is unclear to the Court why Plaintiff didn't merely proceed by default judgment and avoid unnecessary motion practice.

Judgment will accordingly be entered in favor of Plaintiff Wells Fargo Bank, N.A. and against Defendant Marc G. Cabangal as prayed for in the Complaint, including the principal amount of \$8,009.82 and costs of suit, minus any payments made that have not yet been credited.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CLJ-07743

BARCLAYS BANK DELAWARE VS. ITZHAK BENHARUSH

LINE 5

BARCLAYS BANK DELAWARE
ITZHAK BENHARUSH

ADAM KIDD
PRO SE

PLAINTIFF'S MOTION TO DEEM REQUESTS FOR ADMISSIONS AS ADMITTED AND FOR SANCTIONS

TENTATIVE RULING:

Plaintiff's request for judicial notice is denied, assuming that Judicial Notice is required for the Court to consider the contents of its file in the instant case. Plaintiff has not specified the part of the file sought to be judicially noticed as required by California Rules of Court, rule 3.1306(c)(1). But it is academic as it does not appear that it is relying on anything in the Court file for this motion.

The unopposed motion is GRANTED. The genuineness of any documents and the truth of any matters in plaintiff's Requests for Admission, Set One, are deemed admitted. See Declaration of Eric Marquez Exhibit A. The request for sanctions is also granted. Defendant shall pay Plaintiff \$60 within 30 days.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
